

4.

CASE #	CASE NAME	HEARING NAME
CVME2512914	FIELDS VS FAST MOSS, INC.	MOTION FOR PROTECTIVE ORDER

Tentative Ruling: The motion is moot. Plaintiff's request for sanctions is granted in the amount of \$1,250 payable within 30 days of this order.

5.

CASE #	CASE NAME	HEARING NAME
CVME2600067	BASS VS CLENNAN	DEMURRER

Tentative Ruling: Request for Judicial notice Granted. Demurrer sustained with 20 days leave to amend with the exception of the Eighth Cause of Action for Unjust Enrichment in which leave to amend is denied. Further Demurrer overruled to the ninth Cause of Action (Rosenthal). Defendants request judicial notice of several documents filed in *Bass v. Clennan*; Case No. 5:25-cv-01298-SSS-SHK ("Federal Action") in the United States District Court, Central District of California. These documents may be judicially noticed pursuant to Evid. Code §452(d), which permits judicial notice of court records. However, "although the existence of a document may be judicially noticeable, the truth of statements contained in the document and its proper interpretation are not subject to judicial notice if those matters are reasonably disputable." (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal. App. 4th 97, 113.) **Collateral Estoppel** - Defendants argue that Plaintiff's claims against them are barred under the doctrine of collateral estoppel. "The doctrine of res judicata precludes parties or their privies from relitigating a cause of action that has been finally determined by a court of competent jurisdiction." (*Bernhard v. Bank of America Nat'l Trust & Sav. Association* (1942) 19 Cal. 2d 807, 810.) The doctrine of res judicata has two aspects: the first is referred to as claim preclusion, which operates as a bar to the maintenance of a second suit between the same parties on the same cause of action, and the second as collateral estoppel, or issue preclusion, which applies in a second suit based on a different cause of action where a prior judgment in a prior suit operates as a conclusive adjudication as to such issues as were actually litigated and determined. (*Ibid.*) "Collateral estoppel precludes relitigation of issues argued and decided in prior proceedings." (*Lucido v. Superior Court* (1990) 51 Cal. 3d 335, 341.) "Collateral estoppel means simply that when an issue of ultimate fact has once been determined by a valid and final judgment, that issue cannot again be litigated between the same parties in any future lawsuit." (*Lucas v. County of Los Angeles* (1996) 47 Cal. App. 4th 277, 286.) There are five threshold issues for the application of collateral estoppel: (1) the issue sought to be precluded must be identical to that decided in a former proceeding; (2) the issue must have been actually litigated in the former proceeding; (3) it must have been necessarily decided in the former proceeding; (4) the decision in the former proceeding must be final and on the merits; and (5) the party against whom preclusion is sought must be the same as, or in privity with, the party to the former proceeding. (*Lucido, supra*, 51 Cal. 3d at 341.) The party asserting the preclusion has the burden of establishing each of these elements. (*Ibid.*)